



MULEMBE
COMMUNITY NSW

MULEMBE WELFARE ASSOCIATION NSW

WELFARE CONSTITUTION

A Constitution of the Welfare Programme of the Mulembe Community NSW

Version 1.0

Adopted by resolution of the members on _____
New South Wales, Australia

MULEMBE
COMMUNITY NSW



PREAMBLE

WE, the members of the Mulembe Community in New South Wales, being persons of Luhya and broader Kenyan heritage resident in Australia, and being mindful that the strength of a community is measured by how it carries its members through loss and hardship;

RECOGNISING that bereavement, illness and misfortune fall upon families without warning, and that the cost of grief is heavier when it is borne alone;

AFFIRMING the values of mulembe — peace, dignity, hospitality and mutual care — inherited from our forebears and owed to those who come after us;

DESIRING to convert goodwill into a dependable, transparent and lawfully administered instrument of support;

DO HEREBY ADOPT this Constitution as the supreme instrument governing the Mulembe Welfare Association NSW, and bind ourselves to its letter and to its spirit.

Obulala ni bwo bukhulusia — In unity there is strength.

ARTICLE 1 — NAME, STATUS AND SEAT

- 1.1 The name of the welfare programme established under this instrument shall be the MULEMBE WELFARE ASSOCIATION NSW (in this Constitution called “the Welfare Association”).
- 1.2 The Welfare Association is a welfare programme constituted within, and operating under the auspices of, the Mulembe Community NSW (in this Constitution called “the Community”). It is not a separate legal person, and nothing in this Constitution shall be construed as creating a partnership, an insurance undertaking, a financial product, a credit facility or a joint venture between members.
- 1.3 The Welfare Association shall consist of those persons who have been admitted to membership in accordance with Article 6 and whose membership subsists at the material time.
- 1.4 The registered seat of the Welfare Association shall be the registered address of the Community in New South Wales, and its affairs shall be conducted in and be governed by the laws of the State of New South Wales and the Commonwealth of Australia.
- 1.5 The financial year of the Welfare Association shall commence on 1 July and end on 30 June of the following calendar year.

ARTICLE 2 — INTERPRETATION AND DEFINITIONS

- 2.1 In this Constitution, unless a contrary intention appears:



“Association Account” means the designated bank account of the Community into which all Welfare Funds are deposited and in respect of which a separate welfare ledger is maintained under Article 14.

“Beneficiary” means a person who satisfies the eligibility requirements of Article 9 and who has been validly nominated by a member on the Registration Form or the online beneficiary form.

“Bereavement Event” means the death of a member or of an eligible Beneficiary of a member, which death gives rise to a claim under Article 10.

“Committee” means the Welfare Committee constituted under Article 12.

“Community” means the Mulembe Community NSW.

“Cooling-Off Period” means the period of two (2) calendar months prescribed by Article 6.5 during which a new or re-admitted member neither contributes to Bereavement Events nor receives welfare payouts.

“Financial Year” means the year ending on 30 June.

“General Meeting” means a meeting of the members of the Welfare Association convened in accordance with Article 13.

“Immediate Sibling” means a brother or sister of the member who shares the same biological mother as the member.

“Joining Contribution” means the one-off sum of AUD 130 payable on admission in accordance with Article 7.2.

“Legal Guardian” means a person who assumed sole or principal parental responsibility in the life of the member, where that relationship commenced before the member attained the age of seventeen (17) years and is supported by satisfactory evidence, and who is declared on the Registration Form.

“Member” means a person admitted to membership of the Welfare Association under Article 6 whose membership has not been suspended, terminated or otherwise determined.

“Next of Kin” means the person nominated as such by a member on the Registration Form, to whom a payout is directed where no biological parent is available.

“Replenishment Contribution” means the contribution of AUD 100 payable by every member following a Bereavement Event under Article 7.3.

“Welfare Fund” means the pool of monies contributed by members and held in the Association Account for the exclusive purposes set out in Article 8.

“Welfare Officer” means the office bearer described in Article 12.3(d).

“Writing” includes electronic mail, message issued through the Welfare Association’s official WhatsApp group, and any other durable electronic record.

2.2 In this Constitution, unless the context otherwise requires:

- words importing the singular include the plural and vice versa;
- words importing one gender include every other gender;



- a reference to a person includes a natural person and a body corporate;
 - “shall” and “must” impose an obligation; “may” confers a discretion;
 - a reference to an Article, sub-Article or Schedule is a reference to an Article, sub-Article or Schedule of this Constitution;
 - headings are inserted for convenience only and do not affect interpretation;
 - all monetary references are to Australian Dollars (AUD);
 - a reference to a number of days means calendar days unless expressly stated to be working days.
- 2.3** A reference in this Constitution to the leadership of the Welfare Association is a reference: (a) where a person holds an office created by this Constitution, to that person; and (b) in any other case, to the office bearers of the Welfare Association acting collectively.
- 2.4** Where any provision of this Constitution is inconsistent with the constitution of the Community, the constitution of the Community shall prevail to the extent of the inconsistency, save in matters concerning the administration of the Welfare Fund, in respect of which this Constitution shall govern.

ARTICLE 3 — STATEMENT OF PURPOSE

- 3.1** The Welfare Association exists to strengthen unity among members of the Community, to provide structured and predictable support during hardship, and to uphold the cultural values of mutual care and collective responsibility.
- 3.2** To facilitate the development and provision of appropriate welfare services to members of the Welfare Association.
- 3.3** To coordinate and deliver welfare assistance promptly, fairly and without discrimination as between members.
- 3.4** To support persons working with the Community in the welfare sector by providing advice, information and administrative assistance.
- 3.5** To undertake community development, community education and advocacy in furtherance of the welfare of members.
- 3.6** To promote the general well-being, dignity and social cohesion of the members and their families.

ARTICLE 4 — OBJECTIVES

- 4.1** The Welfare Association shall pool the financial resources of its members in order to aid a member in the following circumstances:
- 4.1.1** upon the death of an eligible Beneficiary of a member, as that expression is defined in Article 9;
- 4.1.2** upon the death of a member of the Welfare Association;



- 4.1.3** where a member sustains injury or illness resulting in admission to hospital, in which case the members, with the assistance of the Committee, shall render moral support and may organise a voluntary appeal to cushion the member during the period of incapacity;
- 4.1.4** where a member suffers a social crisis or catastrophic misfortune of a nature contemplated by Article 8.3.
- 4.2** The Welfare Association shall further educate the Community on the benefits of the welfare scheme and encourage eligible persons to join it.
- 4.3** The Welfare Association shall maintain a welfare fund of sufficient strength to meet successive Bereavement Events, and shall pursue sustainability through structured contributions, voluntary top-ups and prudent stewardship.

ARTICLE 5 — GUIDING PRINCIPLES

- 5.1** The Welfare Association and every organ of it shall be guided by the following principles, which shall inform the interpretation of this Constitution:
- Dignity — every member and every bereaved family shall be treated with respect, and no assistance shall be rendered in a manner that shames the recipient.
 - Transparency — decisions affecting the Welfare Fund shall be made openly and recorded.
 - Accountability — leaders and members alike are answerable for the discharge of their obligations.
 - Fairness and consistency — like cases shall be treated alike, and the rules shall not be bent for any member however placed.
 - Solidarity — the burden of one is the burden of all.
 - Confidentiality — the private affairs of members disclosed in the course of a welfare claim shall be protected.

ARTICLE 6 — MEMBERSHIP

6.1 Eligibility

- 6.1.1** Membership of the Welfare Association is open to any person of Luhya or broader Kenyan heritage who is ordinarily resident in Australia, who has attained the age of eighteen (18) years, and who is a registered member of the Mulembe Community NSW.
- 6.1.2** Membership is personal to the member. It is not transferable, assignable or capable of being inherited, and it confers no proprietary interest in the Welfare Fund.
- 6.1.3** A spouse or partner of a member may register as a member in his or her own right, and shall upon registration assume all obligations and enjoy all rights of a member independently.

6.2 Application and admission

- 6.2.1** An applicant shall complete the prescribed Membership Registration Form in full, nominate Beneficiaries in accordance with Article 9, and remit the Joining Contribution.



- 6.2.2** Membership takes effect on the date on which the Joining Contribution is received in cleared funds in the Association Account, and that date shall be recorded in the Register of Members as the member's commencement date.
- 6.2.3** The Committee may decline an application where the applicant does not satisfy Article 6.1, where the Registration Form is materially incomplete, or where the applicant has previously been expelled under Article 16. Reasons for refusal shall be given in Writing.

6.3 Register of Members

- 6.3.1** The Secretary shall maintain a Register of Members recording, in respect of each member: full name, contact particulars, commencement date, nominated Beneficiaries and Next of Kin, contribution status, and the date and manner of cessation of membership where applicable.
- 6.3.2** A member shall notify the Secretary in Writing of any change to his or her particulars, and in particular of any change to nominated Beneficiaries, within thirty (30) days of the change occurring.

6.4 Rights of members

- 6.4.1** Subject to being in good standing, a member is entitled: to receive welfare support in accordance with this Constitution; to attend, speak and vote at General Meetings; to stand for election to the Committee; to inspect the welfare ledger in accordance with Article 15.4; and to receive quarterly financial reports.
- 6.4.2** A member is in "good standing" where the member has satisfied every contribution due, has served the Cooling-Off Period, and is not under suspension.

6.5 Cooling-Off Period

- 6.5.1** Every new member shall serve a Cooling-Off Period of two (2) calendar months commencing on the date of the first payment received under Article 6.2.2.
- 6.5.2** During the Cooling-Off Period a member: (a) is not required to make Replenishment Contributions in respect of Bereavement Events occurring within that period; and (b) is not eligible to receive any welfare payout.
- 6.5.3** A Bereavement Event occurring during a member's Cooling-Off Period does not become claimable by reason only of the expiry of that period. Eligibility is determined by reference to the date on which the death occurred.

6.6 Resignation

- 6.6.1** A member may resign by giving one (1) month's notice in Writing addressed to the Chairperson through the Secretary.
- 6.6.2** Upon receipt of such notice the Chairperson shall assign a member of the Committee to engage the resigning member, to ascertain whether any grievance underlies the resignation, and to attempt a resolution.
- 6.6.3** Where no resolution is reached, the Committee shall process the resignation upon the member clearing all outstanding amounts owed to the Welfare Fund, and shall do so within fourteen (14) working days.



- 6.6.4** A member who resigns from the Welfare Association may nevertheless remain a member of the Community.
- 6.6.5** Resignation does not entitle the outgoing member to a refund of the Joining Contribution, of any Replenishment Contribution, or of any top-up, all of which are applied irrevocably to the common Welfare Fund.

6.7 Termination and re-admission

- 6.7.1** Membership terminates: (a) on resignation under Article 6.6; (b) on failure to clear an outstanding balance within the grace period under Article 7.6; (c) on expulsion under Article 16; or (d) on death.
- 6.7.2** A former member may apply for re-admission upon: (a) clearing all arrears accrued prior to termination; (b) paying afresh the Joining Contribution; and (c) completing the application process applicable to a new member.
- 6.7.3** A re-admitted member shall serve a fresh Cooling-Off Period of two (2) calendar months before regaining eligibility for any welfare payout.

ARTICLE 7 — CONTRIBUTIONS AND FINANCIAL OBLIGATIONS

7.1 Nature of contributions

- 7.1.1** Contributions made under this Article are contributions to a common fund of mutual assistance. They are neither premiums nor deposits, they earn no interest for the contributing member, and they create no debt owed by the Welfare Association to the member.

7.2 Joining Contribution

- 7.2.1** A person becomes a member upon being a registered Mulembe Community member, and pays a one-off AUD 100 payment, applied as follows:
- AUD 100 credited to the member's welfare account and held within the Welfare Fund against future Bereavement Events.

7.3 Replenishment Contributions

- 7.3.1** Upon the occurrence of a Bereavement Event in respect of which a payout has been approved, every member shall contribute AUD 100 to replenish the Welfare Fund.
- 7.3.2** Replenishment Contributions shall be paid within thirty (30) calendar days of the official notification issued by the Committee, which notification shall state the amount due and the payment deadline.
- 7.3.3** Where two or more Bereavement Events occur in close succession, a separate Replenishment Contribution is payable in respect of each, and the Committee may consolidate the notifications and the deadlines.

7.4 Voluntary top-up contributions



- 7.4.1** A member who is able to do so may make additional voluntary top-up contributions on a quarterly basis, in order that the Welfare Fund remains prepared for multiple Bereavement Events occurring before all members have replenished.
- 7.4.2** Voluntary top-ups shall be credited to the member's welfare account and applied first in satisfaction of any Replenishment Contribution subsequently falling due.
- 7.4.3** A voluntary top-up confers no enhanced entitlement, no priority of claim and no additional vote.

7.5 Standing of member's welfare account

- 7.5.1** A member is eligible for a welfare payout only if, on the date on which the Bereavement Event occurs, the member's welfare account stands at a credit of not less than AUD 100.
- 7.5.2** A member whose welfare account stands at a debit of AUD 100 or more is not eligible for any welfare payout until the debit is cleared and the member is restored to good standing.

7.6 Arrears, reminders and grace period

- 7.6.1** A member who reaches the debt threshold in Article 7.5.2 shall be issued with two (2) reminders by the Treasurer, the Welfare Officer or a designated member of the Committee, and shall be granted a grace period of thirty (30) days within which to clear the outstanding amount.
- 7.6.2** During the grace period the member remains ineligible to receive a welfare payout but remains liable for all contributions falling due.
- 7.6.3** Failure to clear the outstanding balance within the grace period shall result in termination of membership in accordance with Article 6.7.1(b), and the Secretary shall record the termination in the Register of Members and notify the member in Writing.

7.7 Review of contributions

- 7.7.1** The amounts prescribed by this Article may be reviewed from time to time as membership grows and the Welfare Fund strengthens. Any variation shall be determined by the Committee and endorsed by resolution of the members under Article 13, and shall take effect not earlier than thirty (30) days after notification to members.

7.8 Hardship deferral

- 7.8.1** A member experiencing genuine financial hardship may apply in Writing and in confidence to the Welfare Officer for a deferral of a Replenishment Contribution.
- 7.8.2** The Committee may grant a deferral of up to sixty (60) days, or approve a payment arrangement, on such terms as it considers just. A deferral granted under this Article suspends the operation of Article 7.6 for its duration and preserves the member's good standing.
- 7.8.3** An application under this Article, and the fact that it was made, shall be treated as confidential and shall not be disclosed to the general membership.

ARTICLE 8 — SCOPE OF WELFARE SUPPORT



- 8.1** The Welfare Fund shall be applied exclusively to: (a) bereavement assistance under Article 10; (b) emergency medical and hospitalisation support under Article 8.2; and (c) community-driven social support under Article 8.3.
- 8.2** Where a member is admitted to hospital, the Committee shall coordinate visitation and moral support, and may organise a voluntary appeal among members. Such an appeal is distinct from the standard payout and does not create an entitlement against the Welfare Fund.
- 8.3** Community-driven social support may be extended, by resolution of the members, in cases of fire, flood, displacement, repatriation of remains, or comparable catastrophic misfortune affecting a member.
- 8.4** The Welfare Fund shall not be applied to any other purpose whatsoever, and in particular shall not be applied to loans to members, business ventures, legal costs of individual members, social functions, or the general administration of the Community.

ARTICLE 9 — BENEFICIARY ELIGIBILITY AND NOMINATION

- 9.1** A Beneficiary is only a person who satisfies the strict eligibility rules set out in this Article. These rules are exhaustive and shall not be expanded, varied or waived by the Committee in an individual case.
- 9.2** The following, and only the following, may be nominated as Beneficiaries:
- 9.2.1** the biological father and biological mother of the member, who are the primary Beneficiaries;
- 9.2.2** where no biological parent is available, the Next of Kin nominated on the member's Registration Form;
- 9.2.3** a stepparent or Legal Guardian, but only where the parental or guardianship relationship commenced before the member attained the age of seventeen (17) years and satisfactory evidence of that relationship is furnished;
- 9.2.4** the spouse of the member;
- 9.2.5** a child of the member; and
- 9.2.6** an Immediate Sibling of the member, being a sibling who shares the same biological mother as the member.
- 9.3** In families of polygamous structure, recognition is limited strictly to the biological mother and the biological father of the member.
- 9.4** Every member shall complete the beneficiary form published on the Welfare Association's website, and shall keep that nomination current. Where a member has failed to nominate, or the nomination is materially defective, the Committee shall determine the proper recipient by reference to Article 9.2 and to the documentary evidence produced.
- 9.5** A nominated Beneficiary may be nominated by more than one member. Where two or more members share the same deceased Beneficiary, the Committee shall treat the matter as a single Bereavement Event and shall not authorise duplicate payouts in respect of the same deceased



person; the payout shall be made to the family through such of the affected members as they jointly nominate in Writing.

- 9.6** A Beneficiary has no direct right of action against the Welfare Association and no interest in the Welfare Fund. The entitlement, such as it is, vests in the member and is administered for the benefit of the bereaved family.

ARTICLE 10 — WELFARE PAYOUTS

- 10.1** The standard welfare payout in respect of each approved Bereavement Event is AUD 5,000.
- 10.2** Upon the death of an eligible Beneficiary of a member, the member shall receive AUD 5,000 from the Welfare Fund for the support of the bereaved family.
- 10.3** Upon the death of a registered member, the Welfare Association shall disburse AUD 5,000 to the eligible Beneficiary determined under Article 9, and the deceased member's account shall be closed without further liability to the estate.
- 10.4** Where a member is outside Australia at the time of transfer, the payout shall be remitted to an account nominated by the member or the Beneficiary, and any transaction, conversion or remittance fee shall be borne by the recipient.
- 10.5** Only one payout shall be made in respect of any one deceased person, irrespective of the number of members to whom that person stood in an eligible relationship, save as the members may otherwise resolve.
- 10.6** The payout amount and the contribution rates may be reviewed over time as membership grows and the Welfare Fund strengthens. Any adjustment shall be determined by the Committee and endorsed through the approved governance process in Article 13, and shall not operate retrospectively in respect of a Bereavement Event that has already occurred.
- 10.7** Where the Welfare Fund is temporarily insufficient to meet an approved claim in full, the Committee shall: (a) disburse such sum as is available as an interim payment; (b) issue an urgent call for Replenishment Contributions; and (c) settle the balance within fourteen (14) days of receipt of sufficient funds. The Committee shall not borrow against the Welfare Fund without a resolution of the members.

ARTICLE 11 — WELFARE CLAIM PROCEDURE

- 11.1** Notification. A member affected by a Bereavement Event shall notify the Chairperson or the Welfare Officer by telephone at the earliest opportunity, and shall follow that notification with a request in Writing. A request may in the first instance be made verbally where circumstances so require.
- 11.2** Documentation. The claimant shall furnish such documentation as the nature of the claim requires, which may include a death certificate or burial permit, a funeral programme or notice, medical notes, an emergency report, and evidence of relationship where the relationship is not apparent from the Register of Members.



- 11.3** Review. The Committee shall review the request within forty-eight (48) to seventy-two (72) hours of receiving it, and shall determine it by reference to eligibility under Articles 6, 7 and 9 and to the funds available.
- 11.4** Communication of decision. The decision, with reasons and next steps, shall be communicated to the claimant in Writing. Where a claim is declined, the notice shall specify the ground of refusal and the claimant's right to seek review under Article 19.
- 11.5** Disbursement. Approved support shall be released within two (2) to three (3) working days of approval and shall be recorded in the welfare register maintained by the Treasurer.
- 11.6** Notification to members. Within seven (7) days of a disbursement the Secretary shall notify all members of the Bereavement Event, the sum disbursed, the Replenishment Contribution falling due and the payment deadline.
- 11.7** Fraudulent claims. A claim founded on a false statement, a forged document or a concealed material fact shall be void, and the claimant shall be liable to refund any sum received and to disciplinary action under Article 16, without prejudice to any action at law.

ARTICLE 12 — GOVERNANCE AND THE WELFARE COMMITTEE

- 12.1** There shall be a Welfare Committee, which shall manage the business and affairs of the Welfare Association.
- 12.2** The Committee shall consist of five (5) members, namely the Chairperson, the Secretary, the Treasurer, the Welfare Officer and one Ordinary Member. The President, Secretary and Treasurer of the Community shall be ex-officio members of the Committee, entitled to attend and to speak but, unless the Committee otherwise resolves, not to vote.

12.3 Offices and functions

- (a)** Chairperson — provides leadership, presides at meetings, oversees welfare operations, ensures adherence to this Constitution, and is the first point of notification of a Bereavement Event.
- (b)** Secretary — maintains the Register of Members and the minutes, manages official communication, documents welfare decisions, and facilitates communication between the Committee and the wider Community.
- (c)** Treasurer — receives and accounts for all contributions, maintains the separate welfare ledger, prepares financial reports, effects approved disbursements, and issues reminders under Article 7.6.
- (d)** Welfare Officer — receives welfare requests, verifies documentation, liaises with affected families with discretion and compassion, and reports to the Committee on each claim.
- (e)** Ordinary Member — assists in the discharge of the Committee's functions and acts in any office temporarily vacant.

12.4 Powers of the Committee



- 12.4.1** The Committee shall vet and approve all payouts strictly in accordance with Articles 4, 9 and 10, and may seek the advice of the Community leadership and of the members where it considers it necessary.
- 12.4.2** The Committee may exercise all powers and functions of the Welfare Association other than those which this Constitution requires to be exercised by the members in General Meeting.
- 12.4.3** The Committee may frame by-laws, standing orders and administrative procedures for the achievement of the objects of the Welfare Association, provided that no by-law shall be inconsistent with this Constitution.
- 12.4.4** The Committee has no power to waive an eligibility rule, to vary the payout amount, or to authorise a payment outside Article 8.

12.5 Election, tenure and vacancies

- 12.5.1** Office bearers shall be elected at the Annual General Meeting of the Community and shall hold office for one (1) year, until the next Annual General Meeting, and shall be eligible for re-election for not more than three (3) consecutive terms in the same office.
- 12.5.2** In order to avoid the whole Committee vacating office simultaneously, the appointment of two of the five office bearers shall take effect three (3) months after endorsement, so that the terms of office are staggered.
- 12.5.3** In the event of a casual vacancy, the Community leadership may appoint a member to the vacant office, and the appointee shall hold office until the next Annual General Meeting.
- 12.5.4** An office bearer may be removed from office before the expiry of the term by a resolution supported by three-quarters ($\frac{3}{4}$) of the members voting, on the ground of misconduct, incapacity, or persistent failure to discharge the duties of the office.

12.6 Meetings of the Committee

- 12.6.1** The Committee shall meet at least once each quarter and at any time on the summons of the Chairperson or of any three members of the Committee.
- 12.6.2** The quorum for a meeting of the Committee shall be three (3) voting members, of whom at least one shall be the Chairperson or the Secretary.
- 12.6.3** Decisions shall be by simple majority of those present and voting. In the event of an equality of votes the Chairperson shall have a casting vote in addition to a deliberative vote.
- 12.6.4** Meetings may be held in person or by electronic means, and a member participating electronically is deemed present.
- 12.6.5** Minutes of every meeting shall be recorded by the Secretary and confirmed at the next meeting.

ARTICLE 13 — MEETINGS OF MEMBERS AND RESOLUTIONS

- 13.1** A General Meeting of the members shall be held at least once in every Financial Year, and a Special General Meeting may be convened by the Committee or on the written request of not fewer than one-third ($\frac{1}{3}$) of the members.



- 13.2** Not less than fourteen (14) days' notice of a General Meeting shall be given, save in a case of urgency, where seven (7) days' notice shall suffice.
- 13.3** The quorum for a General Meeting shall be one-half ($\frac{1}{2}$) of the members in good standing, present in person or electronically.
- 13.4** Members may pass resolutions at a meeting or online through WhatsApp, Zoom, Microsoft Teams or any other appropriate channel approved by the Committee.
- 13.5** A resolution is carried where it is supported by three-quarters ($\frac{3}{4}$) of the members present and voting.
- 13.6** In the case of online voting, members shall cast their votes within one (1) day for non-urgent matters, and within such shorter period as the Committee specifies for urgent matters. A member who does not vote within the period specified shall be deemed to have voted in favour of the resolution, and the notice convening the vote shall state that consequence expressly.
- 13.7** Every member in good standing has one vote. There shall be no voting by proxy, and voting rights are suspended while a member is in arrears or under suspension.
- 13.8** The Secretary shall record the result of every resolution, including the numbers voting for, against and deemed in favour, and shall circulate the record to members within seven (7) days.

ARTICLE 14 — CUSTODY OF FUNDS AND BANKING

- 14.1** All Welfare Funds shall be deposited into the Association Account and shall be accounted for in a separate welfare ledger distinct from the general funds of the Community.
- 14.2** Welfare Funds shall not be applied to any purpose other than those specified in Article 8, and shall not be commingled with, lent to, or used to defray the operating expenses of the Community.
- 14.3** All payments to the Welfare Association shall be made by electronic transfer into the Association Account, quoting the member's full name and the purpose of payment as the transaction reference. Cash payments are discouraged and, where unavoidable, shall be receipted in Writing on the day of receipt.
- 14.4** Every receipt shall be recorded in the payment register within seven (7) days and communicated to the members. A member may request a statement of his or her welfare account from the Secretary or Treasurer at any time.
- 14.5** The Association Account shall operate on not fewer than two (2) authorised signatories, of whom one shall be the Treasurer. No single person shall have unilateral authority to withdraw or transfer Welfare Funds.
- 14.6** All monies disbursed on behalf of the Welfare Association shall be authorised by the Committee and, where the constitution of the Community so requires, by the Community committee.
- 14.7** The Committee shall endeavour to maintain a reserve in the Welfare Fund equal to not less than two (2) standard payouts, so that a second Bereavement Event may be met before replenishment is complete.



ARTICLE 15 – AUDIT AND ACCOUNTABILITY

- 15.1** Record-keeping. The Treasurer shall maintain accurate and current records of all financial transactions of the Welfare Association, including contributions, disbursements, expenses and balances, and shall make those records available to members upon reasonable request.
- 15.2** Financial reporting. A financial report shall be prepared and circulated to all members quarterly and at the close of each Financial Year, and shall state: (a) total contributions received; (b) particulars of disbursements made; (c) the current balance of the Welfare Fund; and (d) any outstanding dues or liabilities.
- 15.3** Audit. The accounts of the Welfare Association shall be audited annually by either an independent auditor appointed by a majority of members, or, where an external auditor is not feasible, by an internal audit sub-committee of not fewer than two (2) members who are not signatories to the Association Account and who are not members of the Committee.
- 15.4** Access to records. Any member has the right to inspect the financial records of the Welfare Fund upon giving not less than seven (7) days' written notice, subject to the privacy and confidentiality obligations in Article 17.
- 15.5** Misuse of funds. Any misuse or misappropriation of Welfare Funds shall be investigated by the Committee or, where a member of the Committee is implicated, by a panel appointed by the members. If misuse is established: (a) the person responsible shall be held accountable and may be required to reimburse the Welfare Fund in full; and (b) serious breaches may result in expulsion and in such legal action as the members consider appropriate under the laws of New South Wales.

ARTICLE 16 – CODE OF CONDUCT AND DISCIPLINE

16.1 Obligations of members

- to uphold respect, peace and unity within the Community;
- to use welfare support for the purpose for which it was granted;
- to maintain the confidentiality of sensitive matters coming to their knowledge;
- to declare any conflict of interest;
- to meet contributions punctually; and
- to refrain from conduct, including conduct on social media or in the Welfare Association's messaging groups, that brings the Welfare Association or the Community into disrepute.

16.2 Obligations of the Committee

- to act with integrity, impartiality and fairness;
- to manage the Welfare Fund transparently;
- to maintain accurate records; and
- to treat every member and every bereaved family with dignity.

16.3 Breaches and sanctions



- 16.3.1** A breach of this Article, or of any other provision of this Constitution, may attract: (a) a written warning; (b) suspension of welfare privileges for a stated period; (c) a requirement of restitution; or (d) expulsion from the Welfare Association.
- 16.3.2** No sanction other than a written warning shall be imposed unless the member has first been given particulars of the allegation in Writing and a reasonable opportunity, of not less than fourteen (14) days, to be heard.
- 16.3.3** Expulsion requires a resolution supported by three-quarters ($\frac{3}{4}$) of the members voting.
- 16.3.4** A member aggrieved by a sanction may invoke Article 19 within fourteen (14) days of being notified of it.

ARTICLE 17 — CONFIDENTIALITY, PRIVACY AND PERSONAL INFORMATION

- 17.1** The Welfare Association collects personal information, including names, contact particulars, family relationships, financial standing and, in the course of claims, health and bereavement information.
- 17.2** Such information shall be collected only for the administration of the Welfare Association, shall be held securely, and shall be used and disclosed only for the purpose for which it was collected or as required by law.
- 17.3** The Committee shall handle personal information consistently with the Australian Privacy Principles, whether or not the Welfare Association is bound by the Privacy Act 1988 (Cth).
- 17.4** Financial reports and communications to the general membership shall disclose aggregate figures and the fact of a disbursement, but shall not disclose medical particulars, hardship applications under Article 7.8, or the private circumstances of a bereaved family beyond what the family consents to.
- 17.5** An office bearer or member who discloses confidential information without authority commits a breach of Article 16 and may be sanctioned accordingly.
- 17.6** A member may request access to, or correction of, the personal information held about that member, and the Secretary shall respond within thirty (30) days.

ARTICLE 18 — CONFLICT OF INTEREST

- 18.1** An office bearer who has a personal interest in a matter before the Committee, including a claim by or in respect of that office bearer or a member of that office bearer's household, shall declare the interest at the earliest opportunity.
- 18.2** An office bearer who has declared an interest shall not participate in the deliberation or the vote on that matter, and shall withdraw from that part of the meeting; the fact of the declaration and the withdrawal shall be minuted.
- 18.3** A claim by an office bearer shall be verified and approved by not fewer than three (3) other members of the Committee.



- 18.4** No office bearer shall receive remuneration for service to the Welfare Association, save for reimbursement of reasonable expenses properly incurred and approved in advance.

ARTICLE 19 — DISPUTE RESOLUTION

- 19.1** In the event of any dispute, disagreement or grievance arising out of or relating to this Constitution or the welfare policy, including its interpretation, application or administration, the following process shall apply.
- 19.2** The dispute shall first be notified in Writing to the Secretary, and the Committee shall attempt to resolve it amicably through direct discussion and negotiation within fourteen (14) days of the notification.
- 19.3** If the matter is not resolved, the parties shall submit the dispute to a mediation team comprising a mutually agreed mediator, who may be an elder of the Community or an independent person. Mediation shall take place within thirty (30) days of the date of submission.
- 19.4** If mediation fails, the dispute shall be referred to a General Meeting, whose determination by resolution under Article 13.5 shall be final as between the parties in all internal matters.
- 19.5** All parties shall participate in the dispute resolution process in good faith and shall cooperate to achieve a fair and timely resolution.
- 19.6** Nothing in this Article prevents a party from exercising a right conferred by the laws of New South Wales, but a party shall not commence external proceedings before exhausting the internal process, except where the limitation period would otherwise expire or urgent relief is required.

ARTICLE 20 — AMENDMENT OF THE CONSTITUTION

- 20.1** This Constitution may be amended by a resolution supported by three-quarters ($\frac{3}{4}$) of the members voting at a General Meeting convened for that purpose, or through an online vote conducted in accordance with Article 13.6.
- 20.2** The text of a proposed amendment shall be circulated to all members not less than fourteen (14) days before the vote.
- 20.3** An amendment takes effect on the date of the resolution or on such later date as the resolution specifies, and does not operate retrospectively so as to defeat a claim that had already accrued.
- 20.4** The Secretary shall maintain a consolidated and version-controlled text of this Constitution and shall publish the current version to members.

ARTICLE 21 — SUSPENSION AND DISSOLUTION OF THE WELFARE ASSOCIATION

- 21.1** The Welfare Association may be dissolved only by a resolution supported by three-quarters ($\frac{3}{4}$) of the total membership at a General Meeting convened expressly for that purpose.



- 21.2** Upon a resolution to dissolve, the Committee shall: (a) cease to admit members and to receive contributions; (b) settle all approved claims and liabilities outstanding at the date of the resolution; and (c) procure a final audit of the Welfare Fund.
- 21.3** Any surplus remaining after the settlement of liabilities shall not be distributed among individual members as profit, but shall be applied, as the members resolve, either to a successor welfare scheme established for the same purposes, or to a charitable or community purpose consistent with the objects in Article 3.
- 21.4** The books, ledgers and Register of Members shall be retained by the Community for not less than seven (7) years following dissolution.

ARTICLE 22 — INDEMNITY, LIMITATION AND GENERAL PROVISIONS

- 22.1** No office bearer shall be personally liable for any act or omission done in good faith in the discharge of duties under this Constitution, and each shall be indemnified out of the funds of the Community against liability so incurred, save in the case of fraud, dishonesty or wilful default.
- 22.2** The Welfare Association is a scheme of mutual assistance. It gives no guarantee, warranty or contract of indemnity, and the entitlement of a member to a payout is at all times subject to eligibility under this Constitution and to the funds available.
- 22.3** Severability. If any provision of this Constitution is held to be invalid, unlawful or unenforceable, that provision shall be severed and the remaining provisions shall continue in full force.
- 22.4** Waiver. No indulgence granted to a member, and no failure or delay by the Committee in enforcing a provision, operates as a waiver of that provision or of any other.
- 22.5** Governing law. This Constitution is governed by the laws of the State of New South Wales, and the parties submit to the jurisdiction of its courts.
- 22.6** Commencement and transition. This Constitution takes effect on the date of its adoption. A person who is a welfare member immediately before that date continues as a member, and any Cooling-Off Period already served or partly served shall be credited.
- 22.7** Schedules. The Schedules form part of this Constitution. Where a Schedule states an amount or a period that this Constitution also states, this Constitution prevails.



SCHEDULE 1 – SCHEDULE OF CONTRIBUTIONS AND BENEFITS

Item	Amount (AUD)	When payable / applicable
Administrative and registration fee	30	Once, on joining. Non-refundable.
Initial welfare contribution	100	Once, on joining. Credited to member's welfare account.
Total Joining Contribution	130	Payable before membership takes effect.
Replenishment Contribution	100	Within 30 days of each notified Bereavement Event.
Voluntary top-up	Member's discretion	Quarterly, optional.
Standard welfare payout	5,000	Per approved Bereavement Event.
Debt threshold for ineligibility	-100 or worse	Assessed on the date of the Bereavement Event.
Grace period after two reminders	30 days	Before termination of membership.
Cooling-Off Period	2 months	From date of first payment; also on re-admission.

SCHEDULE 2 – DOCUMENTATION REQUIRED IN SUPPORT OF A CLAIM

Type of claim	Documents ordinarily required
Death of a Beneficiary	Death certificate or burial permit; funeral programme or notice; evidence of relationship where not recorded in the Register.
Death of a member	Death certificate; identification of the nominated Beneficiary or Next of Kin; evidence of relationship.
Stepparent or Legal Guardian	Evidence that the relationship commenced before the member turned 17 (statutory declaration, school records, correspondence or comparable proof).
Hospitalisation support	Medical notes or a letter from the treating facility confirming admission.



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Type of claim	Documents ordinarily required
Social crisis support	Emergency report, police or fire report, or comparable official confirmation.



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DECLARATION

This Welfare Constitution is established to promote mutual support, financial solidarity and the well-being of all members. By contributing faithfully and by managing the funds transparently and responsibly, we aim to create a dependable safety net for times of need.

All members are expected to uphold the principles of honesty, fairness and accountability in both the contribution to and the use of the Welfare Fund. Regular review, transparent reporting and mutual trust will ensure the long-term sustainability and effectiveness of the Welfare Association.

By agreeing to this Constitution, each member commits to active participation, to respect for the rules of the Welfare Association, and to the support of fellow members in times of hardship.

Together, we build a community of care.

ADOPTED by resolution of the members of the Mulembe Welfare Association NSW.

Chairperson	Secretary
Name: _____	Name: _____
Signature: _____	Signature: _____
Date: _____	Date: _____

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